

Family Law

Family law is a branch of law that governs legal issues related to family relationships, including marriage, divorce, child custody, adoption, and domestic violence. It provides a framework for resolving disputes, protecting the rights of family members, and ensuring the welfare of children. Family law balances legal obligations with personal relationships, addressing matters such as property division, spousal support, and parental responsibilities. Because family dynamics can be complex and emotionally charged, family law often combines legal principles with sensitivity to the unique circumstances of each case, aiming to promote fairness, protection, and stability within families.

Part A. Marriage

Marriage is a legally and socially recognized union between two individuals that establishes rights, responsibilities, and mutual obligations. Beyond its legal framework, marriage often carries deep cultural, religious, and emotional significance, symbolizing commitment, partnership, and the intention to share life's joys and challenges together. It can provide a stable environment for raising children, foster economic and social support, and strengthen family and community bonds. While traditions and laws surrounding marriage vary widely across cultures, the core concept generally revolves around mutual respect, trust, and the formal acknowledgment of a lifelong partnership.

Entering into the Marital Relationship.

Entering into a marital relationship is a significant life decision that involves both emotional and legal considerations. Before marriage, individuals typically engage in a period of courtship or dating, during which they assess compatibility, shared values, and long-term goals. Communication, trust, and mutual understanding are essential foundations for a successful partnership. Many cultures and legal systems also require formal steps, such as obtaining a marriage license, meeting age requirements, and sometimes participating in religious or cultural ceremonies, to ensure that the marriage is recognized both socially and legally.

In Maryland, entering into a marital relationship requires obtaining a marriage license from the Clerk of the Circuit Court in the county or Baltimore City where the ceremony will take place. Both parties must be at least eighteen (18) years old to marry without parental consent.

An individual who is seventeen (17) years old may marry under certain circumstances. A 17-year-old must complete Step 1 and Step 2 described below to apply for a marriage license:

Step 1:

- The individual has the consent of each living parent, guardian, or legal custodian; or,
- If the individual does not have the consent of each living parent, guardian, or legal custodian, either party to be married provides a certificate from a licensed physician, physician assistant, or certified nurse practitioner confirming that the woman to be married is pregnant or has given birth.

Read the Law: [Md. Code, Family Law § 2-301](#)

Step 2:

With or without parental consent, an individual who is seventeen (17) must also present a certified copy of a court order granting authorization to marry. A petition to obtain authorization to marry must be filed in the circuit court for the county in which the individual resides. The petition must include the following information:

- the petitioner's full name, gender, date of birth, and address, including the length of time the petitioner has resided at the address;
- the intended spouse's full name, gender, date of birth, and address, including the length of time the intended spouse has resided at the address;
- a statement explaining how the parties met and how long they have known each other;
- a copy of any criminal records concerning either party and a copy of any peace order or protective order issued against either party;
- evidence that the minor is mature and capable of self-sufficiency and self-support independent of the minor's parents, guardian, legal custodian, or intended spouse; and
- the name and last known address of each living parent, guardian, or legal custodian of the petitioner.

After the petition is filed, the court will appoint an attorney to represent the petitioner throughout the rest of the process.

To apply for a marriage license, each party must provide:

- Full legal name
- Current address
- Date of birth
- Place of birth (state or country)
- Social Security number (if applicable)
- Marital status (single, divorced, or widowed)
- If previously married, the date and place of divorce or death of spouse
- A valid government-issued photo ID (e.g., driver's license, passport, or birth certificate)

Only one party needs to be present to apply for the license, and the application fee varies by county. The license becomes effective at 6:00 a.m. on the second calendar day after issuance and remains valid for six months. The marriage ceremony can be performed by an officiant authorized by the couple's religious organization or by a judge or clerk of the court. After the ceremony, the completed marriage license must be returned to the issuing clerk's office to obtain a certified marriage certificate.

Read the Law: [Md. Code, Family Law § 2-301](#)

Read the Law: [Md. Code, Family Law § 5-2A-01](#), [5-2A-02](#)

Read the Law: [Md. Rule 15-1501](#)

Marriage is prohibited between a person and his or her:

- parent
- grandparent
- child
- brother or sister
- grandchild
- grandparent's spouse
- spouse's grandparent
- aunt or uncle
- stepparent
- stepchild
- spouse's parent
- spouse's grandchild
- grandchild's spouse
- niece or nephew
- child's spouse

Read the Law: [Md. Code, Family Law § 2-202](#)

Same sex marriage is legal in Maryland, as long as the law does not otherwise prohibit the individuals from marrying (for example, where they are closely related).

Read the Law: [Md. Code, Family Law § 2-201](#)

Maryland recognizes the use of prenuptial agreements. A prenuptial agreement is an agreement entered into by two individuals before they get married. Prenuptial agreements can also be referred to as antenuptial or premarital agreements, or prenuptial contracts.

The purpose of a prenuptial agreement is to outline how certain issues, such as property division and alimony, will be decided if the couple divorces. Maryland law does not specifically address prenuptial agreements. Instead, prenuptial agreements are governed by Maryland contract law.

Through a prenuptial agreement, spouses can agree to financial rights and obligations that exist both at the time of marriage, as well as into the future. The most common elements typically addressed in a prenuptial agreement are:

- Property Division: how the couple's assets and debts will be divided in the event of divorce. This can include property acquired both before and during the marriage,
- Alimony/Spousal Support: whether one spouse will pay the other alimony (spousal support), and if so, the amount and duration of those payments.
- Inheritance Rights: whether certain assets or properties are preserved for specific family members or heirs. Special provisions can be included to protect inheritance rights of children from a previous relationship and children born into the upcoming marriage.

Prenuptial agreements can also address each spouse's ability to manage, sell, buy, or otherwise control property during the marriage, whether retirement accounts are divided or kept separate, and how the proceeds of any life insurance policies are distributed.

While a couple can use a prenuptial agreement to outline a wide array of financial and property rights, there are some limitations:

- A couple may not validly contract before marriage to divorce afterward.
- Prenuptial agreements cannot affect child support or child custody.
- A written promise to marry will not be enforced unless the woman is pregnant.
- In Maryland, there is also no legal action for alienation of affections.

Read the Law: Md. Code, Family Law §§ [3-102](#) and [103](#)

The prenuptial agreement must be in writing and signed by both parties. When entering into the agreement, both parties should fully disclose their assets and debts. The agreement should be fair and reasonable and must be entered into voluntarily. The agreement takes effect when the couple marries and remains enforceable after divorce.

When creating the prenuptial agreement, it is a good idea for both parties to be represented by independent counsel. Even if the parties draft their own contract, it is a good idea to consult with a lawyer on the language that should be used in the document.

Either spouse can challenge the validity of a prenuptial agreement if any of the following are present:

- fraud,
- duress,
- coercion,
- mistake,
- undue influence,
- incompetence, or
- unconscionability (grossly unfair).

It is generally difficult to challenge a prenuptial agreement. The burden is on the spouse challenging the agreement's validity to prove to the court that the contract should be unenforceable. When reviewing a prenuptial agreement, the courts look to see if the agreement is grossly unfair or if the parties were dishonest in dealing with each other. The courts also look to see that both parties completely disclosed all assets and property to each other before the parties signed the agreement. Full disclosure between the parties is essential to a fair agreement.

Additional Information about Prenuptial Agreements: <https://www.peoples-law.org/prenuptial-agreements>

Generally speaking, a "common-law marriage" is a type of marriage where a couple becomes legally married without participating in a lawful ceremony by living together for a long period of time (typically seven (7) years), intending to be married, and holding themselves out to others as married.

A common law marriage cannot be created in Maryland. A couple cannot acquire marital rights and responsibilities by living together for a particular period of time or holding themselves out as spouses. Legal action is not required to dissolve such a relationship.

However, Maryland does recognize as valid, common-law marriages created outside of Maryland if the legal requirements of the other jurisdiction have been met. As a result, legal action is necessary to dissolve a legal “common law” marriage created in another state or foreign country in compliance with their licensing and ceremonial regulations. Maryland courts can and will grant divorces to and determine the rights of “common law” married parties now living in Maryland.

Only a few U.S. jurisdictions allow the creation of common law marriages. These include Colorado, the District of Columbia, Iowa, Kansas, Montana, Rhode Island, Texas, and Utah. The requirements for a valid common law marriage vary in each jurisdiction. For example, Utah only recognizes common law marriages after they are validated by a court or administrative order. Some states, such as Alabama, Georgia, Idaho, Ohio, Pennsylvania, and South Carolina only recognize common law marriages formed before a certain date. Additionally, New Hampshire only recognizes common-law marriages for inheritance purposes.

Additional Information on Common Law Marriage: <https://www.peoples-law.org/common-law-marriage>

A couple believing themselves to have a common-law marriage may be required to prove that their marriage is valid. This is likely to arise in a divorce or upon the death of either spouse to claim an inheritance, survivor benefits from retirement, or social security. Determining whether you have a valid common law marriage can be complex, and you should consult with an attorney.

Terminating the Marital Relationship.

A marriage can be terminated through several legal mechanisms, each addressing different circumstances and needs. The most common method is divorce, where a court formally dissolves the marriage and resolves related matters such as property division, spousal support, and child custody. Annulment is another option, which declares that a marriage was legally invalid from the beginning due to factors like fraud, coercion, or incapacity. In some jurisdictions, a marriage may also end automatically through the death of a spouse, which terminates marital obligations and rights. Each method has specific legal requirements and consequences, ensuring that the termination of the marriage is recognized and enforceable under the law.

Terminating the Marital Relationship - Annulment.

Annulment is a relatively rare special action establishing that your marriage never existed. An annulment erases the marital union entirely as if you and your spouse were never married. The factors necessary to prove an annulment are difficult to prove. Maryland courts are reluctant to grant an annulment and may grant a divorce instead.

In Maryland, you may file an annulment in the county you reside in or in the county where the marriage ceremony took place.

An action for annulment should be filed within a reasonable time after the grounds are known to the party seeking the decree.

The party seeking an annulment must prove that the marriage was invalid. The proof must be clear and satisfactory, a higher burden than in most civil cases. If the court grants an annulment, however, the court decree will protect the parties' property rights and provide for the

support of any children. The decree may also award alimony. Furthermore, children are not made illegitimate by the granting of an annulment.

A marriage may be annulled if it is void or voidable. Void means the law prohibits the marriage from ever existing. A voidable marriage has certain defects that permit the marriage to be attacked directly.

A marriage is considered void if at the time of the ceremony:

- Bigamy: Either party was legally married to someone else; or,
- Incest: The parties are related by birth or marriage within impermissible degrees of consanguinity, such as:
 - parents, grandparents, children, or grandchildren or their spouse or spouse's children, a brother or sister or their children, an aunt or uncle, a stepparent or stepchild, or a spouse's parent, grandparent, or grandchild.

Read the Law: [Md. Code, Family Law § 2-202](#)

Read the Case: [Ledvinka v. Ledvinka, 154 Md. App. 420 \(2003\)](#)

A marriage that is deemed void is always considered invalid. At any time, either individual involved in the marriage, or a third party, can initiate legal proceedings to declare the marriage void.

A marriage is considered voidable, if at the time of the ceremony:

- Consent was obtained by:
 - Abduction;
 - Fraud;
 - Duress;
 - Undue influence; or,
- Incapacity: Either party lacked the mental capacity to fully comprehend and consent to the marriage contract.

The duration of the marriage is irrelevant in determining its voidable status. However, suppose the couple continues to live together after the reason for the marriage being voidable no longer exists. In that case, the marriage cannot be annulled.

Read the Law: Md. Code, Family Law §§ [2-301](#), [2-406](#)

Read the Case: [Morris v. Goodwin, 230 Md. App. 395 \(2016\)](#)

Read the Law: [Md. Code, Courts and Judicial Proceedings § 6-202](#)

Read the Law: [Md. Code, Family Law §§ 8-202, 8-203, 8-207, 8-213](#)

Additional Information on Annulments: <https://www.peoples-law.org/annulment>

Terminating the Marital Relationship – Divorce.

Divorce in Maryland is the legal dissolution of a marriage, known as an "absolute divorce." To file, at least one spouse must be a resident of Maryland. Maryland recognizes both fault-based and no-fault grounds:

- **No-Fault Divorce:** The most common ground, based on mutual consent or separation. Couples may file for divorce if they have lived separate and apart for at least 12 months (or 6 months if they have no minor children) and both agree the marriage is irretrievably broken.
- **Fault-Based Divorce:** Maryland also allows divorce based on specific misconduct by one spouse, including adultery, cruelty, desertion for at least 12 months, excessively vicious conduct, or conviction of a felony.

The divorce process involves filing a complaint in the circuit court, serving the other spouse, and possibly attending hearings. If both parties agree, they can submit a marital settlement agreement to expedite the process. Maryland courts aim to ensure fair division of assets and consider the best interests of any children involved.

As part of the divorce proceedings, the couple filing for divorce is required to distribute property that the couple owns. In Maryland, property settlement during a divorce involves the equitable distribution of marital property, which is property acquired during the marriage, regardless of whose name is on the title. The court distinguishes between marital property and non-marital property—the latter includes assets owned before marriage, inheritances, and gifts specifically given to one spouse. In distributing marital property, Maryland courts consider factors such as the contribution of each spouse (both financial and non-financial, including homemaking and childcare), the length of the marriage, the economic circumstances of each spouse, any prior marital agreements, and any fault contributing to the breakup of the marriage.

Spouses can also reach a mutual agreement on property division through a marital settlement agreement, which, if approved by the court, becomes legally binding. This agreement can cover division of real estate, bank accounts, retirement accounts, personal property, and debts. If the parties cannot agree, the court will determine a fair and equitable division. While “equitable” does not always mean “equal,” the goal is to achieve a fair outcome that reflects each spouse’s contributions and needs.

In addition to distributing the marital property, alimony also has to be considered when filing for divorce. In Maryland, alimony—also known as spousal support—is determined on a case-by-case basis, with the court considering various factors to ensure a fair and equitable award. The court may award alimony for a period beginning from the filing of the pleading that requests alimony, and at the conclusion of the period of the award, no further alimony shall accrue. Factors influencing the amount and duration of alimony include the length of the marriage, the financial needs and resources of each spouse, the standard of living established during the marriage, the age and health of the parties, and the ability of the party seeking alimony to be wholly or partly self-supporting. While Maryland does not have a set formula for calculating alimony, these factors guide the court’s decision to ensure that the alimony award is fair and just for both parties.

In Maryland, child custody and visitation decisions during divorce proceedings are governed by the principle of the child’s best interests, as outlined in Maryland Family Law § 9-101. The court evaluates various factors to determine what arrangement best supports the child’s welfare and development.

Maryland recognizes various types of custody.

De facto Custody - *De facto* custody refers to who actually has custody of the child before the court is involved. "*De facto*" means "in fact."

Emergency Custody – If you believe there is an imminent risk of substantial and immediate harm to you and/or your minor child, you may wish to consider a request for emergency relief. The specific procedure to request emergency custody can vary from Circuit Court to Circuit Court; however, the emergency custody hearing usually takes place very quickly after filing the request. If you are granted emergency custody, this is a temporary order, and you will need to continue with your case until there is a final order providing permanent relief. While the emergency custody is temporary, it is not the same as temporary custody or pendente lite custody.

Joint Custody - Joint Custody is actually broken down into three categories: Joint Legal, Shared Physical, and Combination.

- **Joint Legal Custody** is where the parents work together and share the care and control of the upbringing of the child, even if the child has only one primary residence. Each parent has an equal voice in making decisions. There are hybrid versions of joint legal custody where one parent may have "tiebreaking" authority (the final word in cases of disagreement), or each parent may have certain areas of decision making authority.
- **Shared Physical Custody** is when the child has two residences, spending at least 35% of the time with each parent.

Legal custody involves the right to make long-term plans and decisions for the education, religious training, discipline, non-emergency medical care and other matters of major significance concerning the child's welfare. The court may order legal and physical custody in a number of ways.

Pendente lite custody - See the information about temporary custody below.

Physical custody involves spending time with the child and making decisions about the child's everyday needs, including where the child lives. The court may order legal and physical custody in a number of ways. Physical custody can sometimes be referred to as "parenting time."

Sole Custody - A person may be granted sole legal custody, sole physical custody, or both.

Split Custody (of 2 or more children) - Split custody means that one parent has sole custody of some of the children, and the other parent has sole custody of the remaining children. Split custody is easiest to describe in a situation where there are two children, and each parent obtains full physical custody over one child. Some of the factors that may point to this result are ages of the children and their wishes. Generally, the courts do not favor split custody.

Temporary Custody - Temporary custody is also called *pendente lite*, meaning "pending the litigation". To formalize custody before you begin litigation, you will need to file for temporary court ordered custody. Temporary custody will be based on the "best interests" of the child standard. It is not an "initial" award of custody. Instead it is temporary custody while you wait for the court to hold a hearing. To be awarded temporary custody you must file a request for hearing and an Order for Temporary Custody and Support along with your Complaint for Custody or Divorce.

Additional Information on Custody: <https://mdcourts.gov/video/selfhelp/child-custody-important-terms>

When granting custody, Maryland Courts apply what is commonly known as, "The Best Interest of the Child" test. This test examines, regardless of any agreement that they parents may have reached, the courts will look to determine the "best interests" of the child. The court will look at several factors. No single factor is most important. This is a list of some, but not all, of the factors, that courts will consider.

- **Primary Care Giver** - Who is the person who takes care of the child? Who feeds the child, shops for their clothes, gets them up for school, bathes them, and arranges day care? Who does the child turn to when they get hurt?
- **Fitness** - What are the psychological and physical capacities of the parties seeking custody? The court may also consider evidence of abuse by a party against the other parent, the party's spouse, or any child residing within the party's household (including another child).
- **Character and Reputation**
- **Agreements** - Is there a custody agreement already in place?
- **Ability to Maintain Family Relationships** - Who will be best able to help the child keep family relationships? Who is going to let the child speak with their ex-mother-in-law, for example? Who will not penalize the child for any bad action on the part of the other parent?
- **Child Preference** - The decision of the court may be reversed on appeal if the judge will not hear the child's preference. However, the judge may choose to interview the child outside the presence of the parents. Though it is rare, the court will hear from a child under 7 years, and a child as young as 5 or 6 years of age may be heard. The child's maturity, and whether the child can tell the truth from fiction will guide the decision whether a child may be heard. A child of at least 10 or 12 years of age is certainly entitled to have their opinions heard and given weight in legal proceedings about custody. Additionally, the court has the power to appoint an attorney for the child in contested cases.
- **Material Opportunity** - Which parent has the financial resources to give the child more things?
- **Age, Health and Gender of Child**
- **Residences of Parents and Opportunity for Visitation** - How close do the parents live to each other? How close do they live to members of the child's

extended family? Which parent lives closest to the child's school and social circle?

- **Length of Separation** - How long has the parent been separated from the child?
- **Any Prior Abandonment or Surrender of Custody** - Is there a history of one parent walking out and leaving the other parent to cope with the child and the home? Which parent left when you last broke up?
- **Religious Views** - These will be important in the court's decision only if you can show that religious views affect the physical or emotional well-being of the child
- **Disability** - A party's disability is only relevant to a custody decision if the disability affects the best interest of the child.

Read the Law: [Md. Code, Family Law § 9-107](#)

Read the Law: [Taylor v. Taylor, 306 Md. 290 \(Court of Appeals 1986\)](#); [Md. Rule 9-204.1\(c\)](#)

[Child Custody - Proceedings](#) from the Maryland Courts

[Child Custody - Trial](#) from the Maryland Courts

Additional Information on Custody: <https://www.peoples-law.org/grandparent-visitation-rights>

Read the Law: [Md. Code, Criminal Law § 10-502](#)

When one parent has primary physical custody, the other parent is typically granted visitation rights. Maryland law emphasizes the importance of maintaining a relationship with both parents, and visitation schedules are designed to facilitate this. In cases where there are concerns about safety or well-being, the court may order supervised visitation to ensure the child's protection.

Visitation is time scheduled between a child and the parent (or third party) who does not maintain the primary residence for the child. Visitation arrangements can include:

- a flexible visitation schedule;
- reasonable visitation as determined by the custodial parent;
- a structured visitation schedule to include holidays, weekends, and summer vacations; and
- supervised visitation.

If one parent has sole legal custody, that parent has the authority to make long-term decisions regarding the child's health, education, religious upbringing, care, and welfare. A parent who does not have legal custody should not attempt to subvert those decisions during scheduled visitation. For example, if the parent with legal custody has decided to raise the child in the Jewish tradition, the parent with visitation rights should not take the child to be baptized in a Catholic church.

Read the law: [Md. Code, Family Law Title 9](#)

The courts encourage parents to work together to determine a visitation schedule that is in the child's best interests. Factors such as school and work schedules, family traditions, the distance between the parent's homes, other siblings and family members, health requirements, and other personal issues affect each visitation schedule uniquely. If parents cannot work together to set a schedule that will benefit the child's needs and accommodate the parents'

schedules, the courts have mediation resources available to assist. Court-certified mediators are available in every county to provide neutral assistance to allow the parents to meet their child's needs.

Read the law: [*Boswell v. Boswell*, 352 Md. 204 \(Court of Appeals 1998\)](#);
[*Leary v. Leary*, 97 Md.App. 26 \(Court of Special Appeals 1993\)](#);
[*Meyr v. Meyr*, 195 Md.App. 524 \(Court of Special Appeals 2010\)](#)

A biological parent can be awarded visitation. Additionally, grandparents (even when the parents weren't married or are not currently divorced) and step-parents may be awarded visitation rights. It may be difficult for grandparents or other third parties to receive court-ordered visitation. It will depend on the facts of the case. While there are no reported cases of brothers or sisters being given visitation, a strong argument could be made that it would be in the best interest of the child.

Read the law: [Md. Code, Family Law § 9-102](#)

The court also has the power to deny visitation to a parent if visitation would place the child in an unsafe situation. Any situation that poses a danger to the child must be brought to the attention of the court and other appropriate agencies. Normally, the court will only stop visitation for a certain time or until a certain task is performed.

The court will also deny visitation in other specific circumstances. For example, if the requesting parent were found to be guilty of murder of the other parent, the court would probably deny visitation rights to that parent.

Read the law: [Md. Code, Family Law § 9-101](#), [§ 9-101.1](#), [§ 9-101.2](#)

Parents are encouraged to develop a parenting plan that outlines custody and visitation arrangements. If parents cannot agree, the court will intervene to establish a plan that serves the child's best interests. It's important to note that failure to pay child support does not justify denying visitation rights.

If parents are unable to develop a parenting plan and create an agreement, it is possible for the court to appoint a mediator to help resolve the issue. A mediator specializes in helping people reach an agreement that is fair and will last. The sessions are confidential. A mediator's role may be limited to custody. You may also ask to cover other issues such as marital property if you choose. Mediation is not appropriate in cases where there is a genuine issue of physical or sexual abuse of the child or one of the parties. It is also important to get a legal advisor for this process. The mediator's role is not to take sides, but to bring the two sides together.

When looking at mediation, it is important to remember, the court has the power to order you and the other side to go to mediation if and when:

- Your case is just starting;
- You are requesting modification of an existing order; or

- You are filing a contempt action.

You should be aware, however, that if mediation is ordered by the court at the initial proceeding it will most likely prolong the legal process by stopping all other actions until the mediation is complete. The court will initially order two sessions. However, a mediator may recommend that the court order two additional sessions. You may decide to continue the mediation without the court ordering it. The court also has the power to order one or both parties to pay for the mediation.

Read the Law: [Md. Rule 9-205](#)

Custody and visitation orders can be modified if there is a significant change in circumstances. Parents seeking a modification must demonstrate that the change serves the child's best interests. Additionally, both parents are legally obligated to comply with court-ordered arrangements, and failure to do so can lead to enforcement actions.

Both parents have a legal duty to support their children based on their ability to provide that support. Child support is a legal obligation that requires one parent to provide financial assistance to the other parent for the care and well-being of their child or children. A court typically orders it to ensure that both parents contribute to the financial needs of their children, even if the parents are no longer in a romantic or marital relationship. Child support is intended to cover various expenses related to raising a child, including but not limited to:

- Childcare expenses
- Health insurance coverage
- Medical expenses
- Educational expenses
- Travel expenses

Since 1990, Maryland has had [child support guidelines](#), which provide a formula for calculating child support based on a proportion of each parent's gross income. These guidelines are applied unless a party can show that the application of the guidelines would be unjust and inappropriate in their particular case. This article discusses the issue of child support when viewed in the context of a divorce or paternity action. Courts often make crucial decisions about how much child support a noncustodial parent must pay.

Courts are required to apply these guidelines unless a party can demonstrate that doing so would be unjust or inappropriate in a particular case. Parents can agree to a child support amount, but any agreement to waive or reduce support is generally unenforceable, as Maryland courts prioritize the child's right to financial support.

Child support obligations typically continue until the child reaches the age of majority (18), becomes emancipated, or graduates from high school, whichever occurs later. To initiate a child support case, parents can file a Complaint for Child Support with the appropriate financial statement. Additionally, the Maryland Child Support Administration offers services to assist in establishing, enforcing, and modifying child support orders.

The Child Support Guidelines try to estimate the percentage of income that parents would spend on children if the parents were living together. The Guidelines use the following steps to calculate the amount of child support:

- Figure out each parent's actual income.
- Figure out each parent's adjusted actual income or imputed income.
- Add up both parents' adjusted or imputed incomes. The combined amount is plugged into the Guidelines chart to determine the "basic child support obligation."
- Factor in some additional expenses, including health insurance costs, daycare costs, and extraordinary medical expenses as well as factor in the "self-support reserve." The "self-support reserve" is an adjustment ensuring that the parent paying child support maintains at least 110% of the 2019 Federal poverty level for an individual. This generates the "total child support obligation."
- The non-custodial parent is responsible for paying a percentage of the total child support obligation.

Read the law: [Md. Code, Family Law § 12-201](#)

Read the rule: [Md. Rule 9-206](#)

When examining child support in Maryland, it is important to remember that a support decree is not limited to an order of direct money payments to the custodial parent. The order often addresses other needs. Here is some sample language in a child support order:

- **Insurance and healthcare:** "As and for additional child support, father/mother (name) is ordered to maintain his/her children as beneficiaries on his/her health and life insurance policies available through his/her employment. Father/mother is further ordered to pay for one-half of all uninsured medical, dental, and ophthalmologic services provided for the children."
- **Childcare:** "As and for additional child support, father/mother shall pay directly to the ABC Daycare Cooperative the full cost of afternoon after-school daycare. However, should the children be enrolled in morning daycare, such expenses shall be the sole responsibility of the other parent."
- **Miscellaneous:** "As and for additional child support, father/mother shall pay the round-trip plane and other reasonable costs of transporting the children for visitation with father/mother, as provided in the visitation provisions of this order. However, during visits of two weeks or more, the father's/mother's child support payments to mother shall be reduced by \$50 per month per child."

These examples show how flexible child support orders can be. The court has many choices in creating a support arrangement it thinks is best for the children. The court will try to maintain the lifestyle the children enjoyed before the divorce if the parents' finances permit. A parent can be ordered to maintain insurance for the benefit of children, pay medical bills, private school expenses, daycare costs, transportation bills, music lessons and to pay (or partially pay)

for other aspects of a child's day-to-day life. Support can also be reduced if the non-custodial parent has physical custody of the children for at least 35% of the time.

Read the Law: Md. Code, Family Law [§ 12-201](#), [§ 12-202](#), [§ 12-204](#)

Read the Case: [Payne v. Payne, 132 Md.App. 432 \(Court of Special Appeals 2000\)](#)

Read the Law: [Md. Code, Family Law Title 12](#)

Read the Maryland Child Support Guidelines:

<https://mgaleg.maryland.gov/mgaweb/Laws/StatuteText?article=gfl§ion=12-204&Extension=HTML>

Child Support Calculator: <https://mydhr.benefits.maryland.gov/dashboardclient/#/csocDisclaimer>

Part B. The Parent-Child Relationship

Establishing the Parent Child Relationship.

Maryland law presumes that both natural parents are the natural custodians of their children. The law does not favor either the mother or father. This article is designed to give you general information on how courts decide custody and visitation rights in Maryland.

Either of the separated parents may petition a circuit court in Maryland for custody of a child. If the parties cannot agree about who should have custody, the court will grant custody either solely to one of the parents or shared between parents.

Establishing the Parent Child Relationship – Paternity.

Establishing the parent-child relationship in paternity contests involves legally determining the biological father of a child, which is critical for issues such as child support, custody, visitation, and inheritance rights. In Maryland, paternity can be established voluntarily if both parents sign a Acknowledgment of Paternity, or it can be determined through court proceedings when there is a dispute. The court typically relies on genetic testing (DNA tests) as the most accurate method for establishing biological parentage. Once paternity is legally established, the father gains rights and responsibilities, including the obligation to provide financial support, and may also seek custody or visitation. Paternity contests ensure that both the child's and the parents' legal rights are protected, creating a clear framework for parental responsibility and involvement.

Establishing the Parent Child Relationship – Adoption.

Adoption is a legal process that establishes a parent-child relationship between individuals who are not biologically related. Through judicial order, the adoptive parents become the legal parents of a child, assuming all the rights and responsibilities that come with parenthood. The legal process terminates the biological parent's legal rights and responsibilities. Under the law, the new parent-child relationship is no different than the relationship between a biological parent and child.

Adoption can occur for various reasons, such as when biological parents are unable or unwilling to care for their child or when a child is orphaned. It provides a way for children to become part of a new family and allows adoptive parents to expand their family and care for a child in need. Maryland does not bar adults from being adopted.

Maryland law defines three different kinds of adoptions:

- **Public agency adoptions:** this type of adoption is filed by the Department of Human Services after parental rights have been terminated.
- **Private agency adoptions:** this type of adoption is filed by a private adoption agency that has identified a child available for adoption and has identified a family willing and able to adopt the child.
- **Independent adoptions:** this type of adoption is usually filed by a private party. Independent adoptions are often filed by a stepparent or co-parent who wants to adopt their partner's child.

All three kinds of adoption have similar procedures. Adoption begins with filing a petition for adoption in Circuit Court. If the biological parents can be found, they are allowed to consent or object to the adoption. Investigations and reports are filed with the court, and a hearing is held. Finally, the court will either grant or deny the petition. The Appellate Court of Maryland (formerly the Court of Special Appeals) handles appeals.

Read the Maryland Rules: [Rules 9-101 through 9-113](#).

Read the Law: Public agency adoptions: [Md. Code, Family Law Title 5, Subtitle 3](#)

Private agency adoptions statutes: [Md. Code, Family Law Title 5, Subtitle 3A](#).

Independent adoptions: [Md. Code, Family Law Title 5, Subtitle 3B](#).

Read the Regulation: [Code of Md. Regulations Title 7, Subtitle 2, Chapter 12](#).

[Code of Md. Regulations Title 7, Subtitle 5, Chapter 3](#).

Establishing the Parent Child Relationship – Surrogacy.

Establishing parental rights in surrogacy involves legally determining which individuals will be recognized as the child's legal parents when a child is born through a gestational or traditional surrogate. In Maryland, as in many jurisdictions, surrogacy arrangements typically require a pre-birth or post-birth court order to clarify parentage and protect the rights of all parties. Intended parents — whether using their own gametes or donor eggs/sperm—must often petition the court to be recognized as the legal parents, while the surrogate relinquishes any parental claims. Courts consider the terms of the surrogacy agreement, the best interests of the child, and compliance with state laws regarding surrogacy contracts. Once parental rights are legally established, the intended parents assume full responsibilities, including custody, decision-making authority, and child support obligations if applicable, ensuring the child's legal and emotional stability.

Parental Rights, Responsibilities, & Liabilities.

Parental rights, responsibilities, and liabilities encompass the legal and moral duties parents have toward their children, as well as the rights they hold in raising them. Parental rights include the authority to make decisions regarding a child's education, healthcare, religion, and general welfare. Responsibilities involve providing for the child's physical, emotional, and financial needs, including food, shelter, education, and medical care. Liabilities may arise when parents fail to fulfill these duties, potentially resulting in legal consequences such as child support enforcement, intervention by child protective services, or civil liability for harm caused by neglect. These rights and obligations aim to protect the child's best interests, promote their healthy development, and ensure that parents are accountable for the upbringing and welfare of their children.

Child Neglect & Abuse.

Child neglect is a misdemeanor crime in Maryland. The law prohibits parents, family members, and other adults in the home who have care or responsibility for a child, or any other person who has care or custody or responsibility for the supervision of a child from neglecting the child.

Child neglect is defined in three parts as follows:

- An intentional failure;
- To provide for the physical needs or mental health of a minor; and
- That creates a substantial risk of harm.

People who are covered by this section include not only the parent's child or family members, but also those who have permanent or temporary care or responsibility for supervising the child. This includes a court-appointed guardian, a soccer coach, a school teacher, a music teacher, or any other person responsible for watching or caring for the child.

The law specifically excludes cases where the needs of a minor are not met solely because the person caring for the child does not have enough money to pay for everything the child needs.

Legal Status of Minors

In Maryland, individuals under the age of 18 are legally considered minors and possess certain rights and responsibilities distinct from those of adults. The legal status of minors encompasses various aspects, including parental authority, medical consent, and educational obligations.

Parental Authority and Guardianship. Under Maryland law, parents are typically recognized as joint natural guardians of their minor children, sharing equal rights and responsibilities regarding the child's upbringing, education, and welfare. In cases where one parent is deceased, has abandoned the family, or is incapable of acting as a parent, the surviving or capable parent assumes sole guardianship.

Medical Consent. Maryland law permits minors to consent to certain medical treatments without parental involvement. For instance, minors may independently seek treatment for drug abuse, alcoholism, sexually transmitted diseases, and mental health issues, provided they are deemed mature enough to make informed decisions. Additionally, minors who are married, parents themselves, or living independently and self-supporting have the legal capacity to consent to general medical or dental care.

Educational Requirements. Maryland law mandates that children aged 5 through 17 attend school regularly unless excused for a lawful reason. This requirement underscores the state's commitment to ensuring that minors receive an education, which is considered a fundamental right and responsibility.

Emancipation. In Maryland, a minor becomes an adult upon reaching the age of 18, known as the age of majority. While emancipation allows minors to gain legal independence from

their parents, it is not a formal process in the state. Therefore, minors under 18 remain under parental authority unless specific legal actions are taken to alter this status.

Understanding the legal status of minors in Maryland is crucial for both minors and adults in navigating rights and responsibilities effectively.